

25STCV10080 25STCV10080

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-14

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Case Number: 25STCV10080 Hearing Date: July 14, 2026 Dept: 512

HEARING DATE: Tues., July 14, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: SMS

Generators, LLC v. Perry, et al. COMP. FILED: 04-03-25

CASE NUMBER: 25STCV10080

NOTICE:

NO

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Brian D. Seibel of Seibel & Finta, representing Defendants Nickolas

Perry and Founderz, LLC

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Brian D. Seibel of

Seibel & Finta's unopposed Motion to be Relieved as Counsel for Defendants Nickolas Perry and

Founderz, LLC is CONTINUED to August 25, 2026 at 9:00 a.m. in Department 512.

At least 16 court days prior to the next hearing, Counsel is to file and serve supplemental papers addressing the deficiencies noted herein.

Defendants' Counsel is ordered to give notice.

SERVICE:

☐

Proof of Service Timely Filed (CRC, rule 3.1300) NO

☒ Correct

Address (CCP §§ 1013, 1013a) OK

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None

filed as of July 8, 2026 ☐

Late ☒ None

REPLY: None

filed as of July 8, 2026 ☐

Late ☒ None

ANALYSIS:

I.

Background

On April 3, 2025, Plaintiff SMS

Generators, LLC ("Plaintiff") filed a Complaint for Breach of Contract against Defendants Nickolas Perry and Founderz, LLC ("Defendants") and Does 1-10.

On October 22, 2025, Plaintiff filed a

First Amended Complaint against Defendants and Does 1-10, alleging causes of action for Breach of Contract, Account Stated, Breach of Implied-in-Law Contract, and Conversion.

On November 10, 2025, Defendants filed
an Answer.

On June 17,
2026, Defendants' counsel Brian D. Seibel of Seibel & Finta ("Counsel")
filed and served the instant Motion to be Relieved as Counsel for Defendants
(the "Motion").

No Opposition
has been filed.

II.
Procedural
Issues

As an initial matter, the Court notes
the Motion was untimely filed and served by mail on Defendants. (Code Civ.
Proc., § 1005.) Indeed, the Motion was not served by mail 16 court days
and five calendar days prior to the instant hearing.

III.
Legal
Standard

Code
of Civil Procedure section 284 states that "the attorney in an action...may be
changed at any time before or after judgment or final determination, as
follows: (1) Upon the consent of both client and attorney...; (2) Upon the order
of the court, upon the application of either client or attorney, after notice
from one to the other." (Code Civ. Proc., § 284; Cal. Rules of Court, rule
3.1362.) "The determination whether to
grant or deny a motion to withdraw as counsel lies within the sound discretion
of the trial court." (Manfredi & Levine v. Superior Court (1998) 66
Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112
Cal.App.4th 1161, 1173.)

An application
to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice
of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal.
Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,

California Rules of Court, rule 3.1362 subsection (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail.

IV.

Discussion

On June 17,

2026, Counsel moved the Court to

be relieved as attorney of record for Defendants. (MC-051.) Counsel filed

MC-051 and MC-052 Forms and seeks to be relieved on the following grounds:

Despite repeated efforts to

communicate with both clients and repeated assurances from them that the pending discovery would be responded to, both clients have failed to provide counsel with any information that would be responsive to the current outstanding discovery. In the absence of such information, the pending discovery cannot be properly responded to and the lack of responsive communication makes my continued representation impossible. Further, clients have a balance due on invoices for services rendered which have been unpaid for more than 90 days. Should further details be required to support this motion, the undersigned is prepared to submit a supplemental declaration under seal in order to protect the confidentiality of attorney client communications.

(MC-052, ¶ 2.)

However, Counsel failed to file an MC-053

Form in conjunction with the Motion.

Additionally, ¶ 2 of the MC-051 Form

lists the wrong courthouse address for the instant Motion hearing.

Accordingly, Counsel's Motion is

CONTINUED to allow Counsel an opportunity to address the deficiencies noted herein.

V.

Conclusion & Order

Accordingly, Counsel Brian D. Seibel of Seibel & Finta's unopposed Motion to be Relieved as Counsel for Defendants Nickolas Perry and Founderz, LLC is CONTINUED to August 25, 2026 at 9:00 a.m. in Department 512.

At least 16 court days prior to the next hearing, Counsel is to file and serve supplemental papers addressing the deficiencies noted herein.

Defendants' Counsel is ordered to give notice.